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November 14, 2024

BY EMAIL AND CERTIFIED MAIL

Evelyn Stanhope, Esq.
General Counsel
Prescott Vane LLP
One Oliver Center, 40th Floor
Pittsburgh, Pennsylvania 15222

**Re: Torvane Industrial Group, Inc. —Claim Against Prescott Vane LLP —
Kelling Station Unit 2 / Brandt Thermal Systems Warranty Claim**

Dear Ms. Stanhope:

This firm represents Torvane Industrial Group, Inc. ("Torvane"). We write to present Torvane's claim against Prescott Vane LLP arising from the firm's representation of the company under your Matter No. 2011-0284.

The engagement. By engagement letter dated April 4, 2011, signed by Arthur Pellum and countersigned by Torvane's then General Counsel, Prescott Vane undertook to represent Torvane "in connection with claims arising out of the Kelling Station Unit 2 expansion project." No amendment, limitation, or supplemental engagement letter qualifies that undertaking in any document of record.

The claim the firm did not protect. Among the claims arising out of that project was a substantial warranty claim against Brandt Thermal Systems, Inc., supplier of the Unit 2 regenerative thermal oxidizer under Purchase Order 8-4471. The unit's chronic failure to meet its contractual performance guarantees is documented in Torvane's own engineering study of August 2013, attached in relevant part, which quantifies: **\$2,140,000** in excess natural-gas consumption (October 2010 through July 2013); **\$890,000** in premature replacement of the heat-recovery ceramic media (April 2012); and **\$645,000** in unplanned downtime attributable to the unit (eleven days). Total: **\$3,675,000**.

The failure. On the record available to Torvane, Prescott Vane never advised the company of the limitations period applicable to the Brandt claim, never recommended or undertook any step to preserve it, and permitted it to expire —no later than 2015 on any tenable accrual analysis —while engaged on claims arising out of the same project. Torvane's current management discovered the loss in 2024, in a post-acquisition review of legacy claims conducted at the direction of Copeland Ridge Partners, and promptly investigated. Nothing in the files transferred to the company at the 2021 acquisition, and nothing in the company's document systems, reflects any advice from your firm concerning the Brandt claim or its limitations period.

Demand. Torvane demands **\$3,675,000**. Please place your professional liability carrier on notice and respond within forty-five days of the date of this letter. Absent a satisfactory response, Torvane will pursue all available

remedies, including an action for professional negligence and breach of contract in the Court of Common Pleas of Erie County.

This letter is written in a good-faith effort to resolve the matter without litigation and is not a complete statement of Torvane's claims or evidence.

Very truly yours,

/s/ Alan Garvey

Alan Garvey
GARVEY STROM LLP

Enclosure: Kelling Station Unit 2 RTO Performance Study (excerpt), August 2013